

HOUSE No. 5176

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 5, 2026.

The committee on Education, to whom was referred the petition (accompanied by bill, House, No. 651) of Frank A. Moran, Adam J. Scanlon and others for legislation to provide for a program of capital investments for vocational-technical education programs and regional vocational-technical schools, reports recommending that the accompanying bill (House, No. 5176) ought to pass.

For the committee,

KENNETH I. GORDON.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve access, opportunity, and capacity in Massachusetts vocational-technical education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 69 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following sections:-

3 Section 38. For the purposes of sections 38 and 39, inclusive, the following terms shall
4 have the following meanings, unless the context clearly requires otherwise:-

5 “District of residence”, shall mean the school district of the city or town where a student
6 resides.

7 “School of residence”, shall mean the middle school or junior high school a student
8 attends within their district of residence.

9 Section 39. (a) The department of elementary and secondary education shall develop and
10 implement policies and promulgate regulations to promote, enhance, and expand vocational-
11 technical education programs, as defined in Chapter 74 of the General Laws, in the
12 commonwealth.

(b) The department shall:

(i) oversee all Chapter 74 approved programs and ensure compliance with M.G.L.

Chapter 74 and related regulations;

(ii) work to increase awareness of vocational-technical education and career opportunities among students in elementary schools, junior high schools, and middle schools;

(iii) ensure that schools offering Chapter 74 programs are provided reasonable access during the school day at schools of residence to meet with all students and distribute information about vocational-technical education and careers to said students, including English language learners,

students with disabilities, students of color, and other student populations, to ensure that such information is provided equitably to all learners;

(iv) ensure that schools offering Chapter 74 programs are given the opportunity during the school day to host middle school tours, with transportation costs paid by the school hosting the tour, for all middle school students in member communities, including English language learners, students with disabilities, students of color, and other student populations to ensure that such opportunities are provided equitably to all learners; and further ensure that the school of residence may not count middle school student tours of vocational schools or programs during the school day as unexcused absences if the vocational school or program confirms the student's participation, and may not unreasonably withhold student access to tours of vocational schools and programs during the school day.

(v) require that schools offering Chapter 74 programs are given the opportunity to provide middle and junior high school students with information about vocational-technical programs and careers through mail and email.

(vi) require all middle schools and junior high schools in member communities to establish and implement a Chapter 74 Access Policy, in accordance with state requirements promoting equitable access to Chapter 74 programs, outlining specific ways in which the middle schools will collaborate with regional vocational-technical high schools and agricultural high schools to: provide staff members from Chapter 74 schools with direct school day access to all middle school students, to inform them about opportunities in vocational-technical and agricultural education and to distribute materials about such opportunities to them; provide all middle school students an opportunity to tour, during regular middle school hours, the regional vocational-

technical high school and/or county agricultural school of which the middle school's city or town is a member, with the transportation costs of all such tours being borne by the school hosting the tours; provide contact information for all seventh grade and eighth-grade middle school students, including a student's name and mailing address, a student's personal email address, and the parent's/guardian's email address by October 15 of each school year;

(vii) establish, in addition to the minimum requirements outlined in the preceding subsections, such additional requirements for Chapter 74 Access Policies as the office deems reasonable and necessary to promote equitable access by all students to information about vocational-technical and agricultural education;

(viii) require all sending school districts which are members of a regional-vocational school district or whose community is located in the county or district of an agricultural high school to submit the Chapter 74 Access Policy annually to the department; annually attest in writing that the Chapter 74 Access Policy is being implemented equitably and that all students are being provided with information, access, and tours in accordance with this section and with federal and state civil rights laws, regulations, and policies; and post the Chapter 74 Access Policy on its district website and provide written copies to students and parents, upon request;

(ix) create a mechanism to enforce timely implementation of Chapter 74 Access Policies;

(x) establish a system to ensure that students who live in communities that are not members of or affiliated with a regional vocational-technical high school district or agricultural high school annually are provided with information about their high school options, including their option to seek an education in a vocational-technical or agricultural high school;

(xi) provide technical support to schools seeking to offer Chapter 74 programs that meet regional labor market demands and do not duplicate existing programs in the region;

(xii) support the continuation of state grant programs that provide funding for equipment purchases and facility expansion; and

(xiii) support the continuation of demonstration programs that provide opportunities in vocational-technical education for students unable to secure a seat in an approved Chapter 74 program due to lack of enrollment capacity.

SECTION 2. Chapter 70B of the General Laws is hereby amended by striking out Section 1A(b), as appearing in the 2022 Official Edition, and inserting in place thereof the following:-

(b) The authority shall consist of the state treasurer, who shall serve as chairperson, the secretary of administration and finance, the commissioner of education, and 4 additional members appointed by the state treasurer, 2 of whom shall have practical experience in educational facilities planning, school building construction, or architecture and school design, 1 of whom shall be a person in the field of education with demonstrated knowledge of Massachusetts curriculum frameworks and other relevant federal and state educational standards, and 1 of whom shall be a person in the field of vocational education with demonstrated knowledge of Massachusetts Chapter 74 vocational education curriculum frameworks and other relevant federal and state vocational educational standards, each of whom shall serve a term of 2 years; but, a person appointed to fill a vacancy shall serve only for the unexpired term. An appointed member of the authority shall be eligible for reappointment. The authority shall annually elect 1 of its members to serve as vice-chairperson. Each member of the authority serving ex officio may appoint a designee pursuant to section 6A of chapter 30.

SECTION 3. Section 3A of Chapter 70B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking the number “17” and inserting “19” in place thereof, and further by inserting, after “Fire Chiefs' Association of Massachusetts, Inc.” the following:- “,Massachusetts Association of Vocational Administrators, Inc., Alliance for Vocational Technical Education,”.

SECTION 4. Subsection (c) of section 14B of chapter 71 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the third sentence and inserting in place thereof the following 2 sentences:-

“Notwithstanding any general or special law to the contrary, a city or town may simultaneously be a member of a vocational regional school district and any other type of regional school district. A city or town that belongs to a regional vocational school district may offer a vocational technical education program in its municipal high school; provided, however, that the program is approved under section 2 of chapter 74 of the General Laws; provided, further, that a vocational regional school district and any other type of regional school district serving the same town shall collaborate through the office of career technical education in offering reciprocal non-competitive programs under chapter 74 of the General Laws; provided, further, that there is demonstrated student and labor market demand for said program as determined by the Regional Labor Market Blueprint and the regional vocational-technical school district is unable or unwilling to meet said demand.”